

Indian Forest Service (Departmental Examination) Rules, 1989

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State of Bihar - Act

Indian Forest Service (Departmental Examination) Rules, 1989

BIHAR

India

Indian Forest Service (Departmental Examination) Rules, 1989

Rule INDIAN-FOREST-SERVICE-DEPARTMENTAL-EXAMINATION-RULES-1989 of 1989

Published on 28 February 1990

Commenced on 28 February 1990

[This is the version of this document from 28 February 1990.]

[Note: The original publication document is not available and this content could not be verified.]

Indian Forest Service (Departmental Examination) Rules, 1989

Published vide Notification No. S.O.120 dated 28th February, 1990

S.O.120 the 28th February, 1990. - In exercise of the powers conferred by Article 309 of the Constitution of India, read with Clause (c) of Rule (2) and Rules (6) and (7) of Indian Forest Service (Pay) Rules, 1968, the Governor of Bihar is pleased to make following Rules for the Departmental Examination of officers of the Indian Forest Service:-

1.

Short title and Commencement.

(1)

These Rules may be called the Indian Forest Service (Departmental Examination) Rules, 1989.

(2)

They shall come into force at once.

2.

Definitions.

- In these Rules, unless there is anything repugnant in the subject or context-

(a)

"Appendix" means an appendix to these Rules;

(b)

"Committee" means the Central Examination Committee constituted under Rule 3 of the Rules made under Appointment Department Notification No. V/DE-109/61 -A-13539, dated the 10th October 1961;

(c)

"Departmental Examination" means the Departmental Examination prescribed under Rule 10;

(d) "Government" means the Government of Bihar.

3.

Functions and powers of the Central Examination Committee.

- The Central Examination Committee will be responsible for the conduct of the Departmental Examination, which will be held at Patna, Ranchi and at such other places as the Committee may, with the approval of Government, decide from time to time.

4.

The Central Examination Committee will, with the prior approval of the Government, fix the dates for the Departmental Examination. The first half-yearly examination will usually be held in the months of May or June and the second in October or November. The Central Examination Committee will notify the dates of examination in Bihar Gazette and shall also inform Government in the Department of Forest and Environment and the Head of this Department about the dates so notified at least two months in advance of the date fixed, unless, for exceptional reason to be reported to Government, they are unable to do so.

5.

It shall be the duty of the Central Examination Committee to prepare, previous to each half-yearly examination, the sets of questions to be put to the examinees in various subjects, to determine the order in which the examination in each paper and subject shall be held, and to arrange all other details for the conduct of the examination and maintenance of the secrecy of the question papers till the hour of examination.

6.

The Central Examination Committee may lay down Rules governing the procedure to be followed in conducting examinations and to ensure a fair and uniform method of evaluating the proficiency of the examinees in each paper.

7.

The Central Examination Committee shall select suitable officers of Government to constitute the Board/Boards to hold the viva voce examination of candidates in Hindi at each centre where such an examination is held.

8.

It shall be the duty of the Central Examination Committee to report to Government the names of such officers as, in their opinion, have passed the Departmental Examination in one or more subjects by lower/higher standards.

9.

The Central Examination Committee will, with the approval of Government in the Appointment Department, appoint Gazetted Officers of Government as Centre Superintendents for the Departmental Examination to be conducted at each centre, who shall function under the supervision of the Committee and comply with the directions by its Secretary.

10.

Subjects of Examinations.

- (i) The Departmental Examinations for officers of Indian Forest Service shall consist of examination in the following subjects:-

(a)

Law Part I

(b)

Law Part II

(c)

Procedure and Accounts.

(d)

Hindi

(e)

Development and Environment.

(ii)

The syllabus for the examination will be detailed in the Appendix I

11.

Liability of officers of the Indian Forest Service.

- Every officer of the Indian Forest Service is required to pass the Departmental Examination specified in Rule 10 above. However, officers of the Indian Forest Service, who passed the Departmental Examination prescribed for the Officers of the State Forest Service and so far being held for the Officers of Indian Forest Service also, before the commencement of this Rule, will not be required to pass the Departmental Examination laid down under this Rule.

12.

Every officer of the Indian Forest Service shall undergo accounts training during his/her attachment in the Division. No officer will be deemed to have passed the examination in Procedure and Accounts until the concerned Divisional Forest Officer has furnished a certificate that the officer has satisfactorily undergone his accounts training during the period of attachment.

13.

(1)

Any officer of the Indian Forest Service posted in the areas mentioned in Part I of Appendix II will have to pass the examination in the tribal language mentioned therein against the district in which he is posted at least by the lower standard, within a period of eighteen months from the date on which he is posted to that district. If he fails to do so, his increments will be stopped until such time as he passes the examination:

Provided that if an officer is prevented from passing the examination by circumstances beyond his control the Head of the Forest Department may grant him such further time for passing the examination as he considers fit.

(2)

An officer whose increments have been stopped for failure to pass the compulsory examination in a tribal language shall get his increments as soon as he is transferred to a district outside the areas mentioned in Part I of Appendix II or as soon as he crosses the age of 50 years whichever is earlier.

(3)

The stoppage of increments under sub rule (1) or sub-rule (2) of this Rule shall not have cumulative effect.

(4)

An officer of the Indian Forest Service posted in Bihar outside the areas mentioned in Part I of Appendix II will be eligible to appear at the optional examination in the tribal language mentioned in Part II of Appendix II.

14.

Procedure for appearance at the examination.

- Any officer desirous of appearing in the Departmental Examination is required to send to Head of the Forest Department through proper channel but not later than the 1st of May in case of the first half-yearly examination, and the 1st of September in the case of the second half-yearly examination, an application in the Form given in the Appendix III.

15.

From the applications referred to in Rule 14 above the Head of the Forest Department, will prepare and send a consolidated statement showing the particulars of the officers and the subjects and standards in which they intend to appear along with their applications, to the Secretary to the Central Examination Committee latest by the 16th May/16th September for the first/second half-yearly examination.

16.

On receipt of such application, the Secretary to the Central Examination Committee shall take necessary steps to inform the Centre Superintendents about the candidate permitted to appear at each centre and may also issue admit cards to the candidates for this purpose.

17.

Regulation of increments.

- Subject to such general or specific order that the Government may issue in this behalf, an officer of the Indian Forest

Service will not be entitled to draw increments from a date two years subsequent to the date of his joining the State or the date the fourth Departmental Examination was held subsequent to the date of his joining the State, whichever be later, unless he has completely passed the Departmental Examination prescribed in Rule 10 by the higher standard.

18.

The advance increments admissible to direct recruits to the Indian Forest Service will be regulated in accordance with Rule 7 of the Indian Forest Service (Pay) Rules, 1968.

Note. - For the purpose of aforesaid Rule 7, the passing of prescribed Departmental Examination will be deemed to mean-

(i)

Passing of the Departmental Examination specified in Rule 10 completely by the higher standard.

19.

Repeal and Saving.

- These Rules shall supersede any Rules or order corresponding to them and in force immediately before the commencement of these Rules, in so far as such Rules or orders are inconsistent with the Rules:

Provided that any order made or action taken under the Rules or orders so superseded, shall be deemed to have been made or taken under the appropriate provisions of these Rules.

Appendix-1

(See Rule 10)

Syllabus of the Departmental Examination Section A (Law)

1. The examination in law shall be primarily meant to have linkages with points which frequently arise in the sphere of actual practice, and the papers to be answered with the aid of books will be designed on such pattern as will thoroughly test the capacity of the examinees to understand the bearing of facts and ascertain the law and apply it. Attempts should be made to confine the question, as far as possible, to cases and circumstances commonly arising in the matters of forest products. Certain facts of probable occurrence in real practice should be stated and the examinees required to find and apply the law applicable to the circumstances relating to those facts.

2. For the purpose of the examination of these officers, law is subdivided into following two parts:

-

Law Part-I

(i)

Forest Law,

(ii)

Criminal Law,

(iii)

Law of Evidence.

Law Part-II

(i)

Revenue Law

3. In the examination in law Part-I there will be two sets of questions, one to be answered with, another without the aid of books. In the law Part-II there will be only one set of question to be answered without books.

4. The scale of marks fixed and time allowed are as follows : -

Subject of Examination

Maximum Marks.

Number of marks required to pass by

Time allowed

Lower Higher

Standard Standard

Law Part-I Paper-I (Without books)

100

40

60

3 hrs.

Law Part-I, Paper-II (Without books)

100

...

60

3 hrs.

Law Part-II, Paper-I (Without books)

200

80

120

3 hrs.

[Officers are not required to pass by the lower standard in the paper with books.]

[Now see Act 49 of 1988.]

N.B. - No officer will be deemed to have passed by the Higher standard in Part I unless at the examination he secures at least 60 marks in the examination with, and also in that without books.

5. The Acts and Regulations from which questions will be set are shown below.

Laws And Regulations In the Examination In Law

Law Part-I

Paper-I (Without books)

Serial No.

Regulation or Act

Subject or short title.

1.

Act 16 of 1927

...

The Indian Forest Act and Rules made thereunder.

2.

Act 53 of 1972

...

The Wild Life (Protection) Act, 1972 and Rules made thereunder.

3.

Bihar Act 5 of 1973

...

Bihar Kendu Leaf (Control of Trade) Act, 1973 and Rules made thereunder.

4.

Bihar Act

12 of 1984

...

Bihar Forest Produce (Regulation of Trade) Act, 1984

5.

Act 69(F) of 1980

...

Forest Conservation Act, 1980, the Rules and Circulars issued thereunder.

Law Part-I

Paper-II (With books)

1.

Act XLV of 1860

...

The Indian Penal Code (As amended upto date).

2.

Act

1 of 1871

...

The Cattle Trespass Act.

3.

Act 2 of 1974

...

The Code of Criminal Procedure, 1973 (As amended upto date).

4.

**Act II of 1974

...

The Prevention of Corruption Act (As amended upto date).

5.

Act XXXVII of 1850

...

The Public Servants (Enquiries) Act

6.

Act 1 of 1872

...

The Indian Evidence Act (Omitting Chapters VIII and X).

Law Part-II

Paper I (Without Books)

1.

Act VIII of 1885

...

The Bihar Tenancy Act, 1885 (As amended upto date).

2.

Bengal Act VI of 1908

...

The Chotanagpur Tenancy Act, 1908 (As amended upto date).

3.

Bihar Act XIV of 1949

...

Santhal Parganas Tenancy (Supplementary Provision) Act, 1949.

4.

Bihar Act XXX of 1950 and all Amending Acts.

...

Bihar Land Reforms Act, 1950

5.

Bihar Act XIII of 1954

...

Bihar Bhoodan Yagna Act, 1954. (As amended upto date.)

6.

*Bihar Act VII of 1948

...

The Bihar Panchayat Raj Act, 1947 (As amended upto date).

** Now Bihar Panchayat Raj Act, 1993.

Section-B

(Procedure and Accounts)

6. The examination in accounts will be of one paper. There will be only one standard with 50 per cent as the pass marks.

The examination will be of 3 hours duration and will carry maximum marks of 200. The following course has been prescribed: -

- (a)
Forest Accounts Code
- (b)
Forest Department Code
- (c)
The Civil Account Code
- (d)
Fundamental and Supplementary Rules
- (e)
Bihar Service Code
- (f)
Bihar Forest Manual Vol. II, Third Edition, 1982.
- (g)
Bihar Treasury Code Vol. I
- (h)
Bihar T.A. Rules
- (i)
Bihar Financial Rules
- (j)
General Provident Fund Rules.
- (k)
Bihar Pension Rules.

Section-C

(Hindi)

7.(a) There will be only one written paper in Hindi (in Devanagari script) carrying 200 marks. The duration of the examination will be three hours. The marks will be distributed as below:-

- (1)
Noting
...
50
- (2)
Drafting
...
50
- (3)
Translation English
...
80 (Hindi to English 40 and to Hindi 40)
- (4)
Correction of Sentences
...
20

Officers securing 50 per cent and above in the written paper will be declared to have passed by the lower standard and officers securing 60 per cent and above would be declared to have passed by the higher standard.

- (b)
The viva voce examination in Hindi will carry 100 marks. The topics for viva voce will be as follow:-

- (1)
Conversation of general topics
40 marks

(2)

Testing knowledge of technical words and expressions generally used

30 marks

(3)

Reading of Hindi manuscripts and their oral translation into English and reading of passages in English and their translation in Hindi.

30 marks

(c)

The minimum marks required for passing in the viva voce by the lower and higher standard will be 50 per cent and 60 per cent respectively. An Officer has to obtain the minimum pass marks separately in the written examination and viva voce for being declared to have passed in Hindi by either standard.

(d)

The following books are recommended:-

I. Navin Hindi Praveshika

II. Prashiksan Vyakhyan Mala, Parts I and II

* Now Bihar Panchayat Raj Act, 1993.

Section-D

(Development and Environment)

8. There shall be a paper of three hours duration on "Development and Environment". The examination in that subject will be by only one standard, and the examinees obtaining 50 per cent marks will be deemed to have passed the examination. The paper will carry 200 marks. The examination in that subject will be directed to judge the candidates level of knowledge about industrial, agricultural, social and other aspects of economic developments through the years of previous Five-Year Plans in general and their influence causing concerns for environment, forests and wild life in particular, with due emphasis on the importance of conservation-cum-developments of forests and preservation of suitable environment as a part of the development of society in totality.

The following course has been prescribed for the examination in this paper:-

(i)

Forest Policy (100 years of Forestry, FRI Publication).

(ii)

IVth to VIth Five-Year Plans and Forestry Sector (Peoples Edition)

(iii)

Social Forestry-National Commission on Agriculture's Interim Report about Social Forestry.

(iv)

Environmental Forestry (The State of India's Environment, 1984, A Citizens Report).

(v)

Constitution of India, from the beginning up to the end of Part X and also Parts XIV and XVI.

Appendix II

(See Rule 13)

Study of Tribal Languages

Part I ? Compulsory Examination in Tribal Languages

1. An officer posted in the areas mentioned below must pass the compulsory examination in the tribal language noted against the district in which he is posted: -

(1)

Hazaribagh

...

....

Santhali

(2)

Ranchi

...

....

Mundari

(3)

Palamu

...

....

Oraon

(4)

Singhbhum

...

....

Ho.

(5)

Santhal Parganas

...

....

Santhali

(6)

Dhanbad

...

....

Santhali(only Chas

and Chandan Kiari police-stations of Baghmara Subdivision of the district of Dhanbad).

2. The tests which a candidate must undergo at the compulsory examination are as follows:-

(a)

He must be able to converse freely with the people of the tribe, to understand and to make himself understood by them;

(b)

He must write down sentences spoken in the tribal language by one of the tribes and must explain the sentences correctly in English or Hindi; and

(c)

He must translate from English or Hindi into the tribal language sentences, not of more difficult nature than those described in clause (b) and the translation must be substantially correct and intelligible to people of the tribe in whose language it is written.

3. (a) The standard prescribed for the compulsory examination is the lower standard. In order to pass by this standard, the examinees must obtain not less than 50 per cent of the marks allotted to each branch of examination and 66.7 per cent of the aggregate,

(b)

The examinee shall be declared to have passed by the higher standard, if he obtains not less than 60 per cent of the marks allotted to each branch of the examination and 75 per cent of the aggregate. Passing by the higher standard shall be optional for all officers. An officer who passes by the lower standard shall be eligible to re-appear at the examination for the higher standard, while an officer who passed by the higher standard shall be declared to have passed by the standard even though he has not previously passed by the lower standard.

4. Notwithstanding anything contained in paragraphs 2 and 3 above, the compulsory examination in the case of officer who has put in 15 years or more of service, shall consist only of an oral test, in which the examinee must be able to converse freely with the people of the tribe to understand and to make himself understood by them. In this test the examinee shall be declared to have passed, if he secures not less than 50 per cent of the marks.

5. If an officer is posted to one of the districts named in paragraph I of this Appendix and duly passes the examination in the tribal language prescribed for that district, and is subsequently posted to another district named in the same paragraph, for which a different tribal language is prescribed, it shall not be necessary for him to pass the examination in

the tribal language of the latter district.

6. If an officer knows one of the languages mentioned in paragraph I of this Appendix as his mother-tongue, and is posted to a district for which the very language has been prescribed as the compulsory tribal language he shall not be required to pass the compulsory examination in that language. If, however, he is posted to a district for which the prescribed tribal language is different from the tribal language which he knows as his mother-tongue, he shall be required to pass the compulsory examination in the tribal language of that district.

7. Examinations in the tribal language, shall be held once in six months, in January and June each year. The Commissioners of Chotangpur and Bhagalpur Divisions will be responsible for conducting these examinations. There shall be uniformity in the standard of examinations held in both the Divisions. The same set of question papers shall be set for examination in one particular language to be held on a particular date. The examination shall be held at the district headquarters and the District Officer shall, under the supervision and control of the Commissioner, be made responsible for conducting the examination.

8. The prescribed text-books in the different tribal languages are the following:-

Name of Language

Name of prescribed text book

Santhali

...

...

Santhali Praveshika, Parts I and II by ShriDoman

Sah "Samir". Editor of the "Hor Sambad" published by Santhal Paharia Seva Mandal Deoghar.

Mundari

...

...

A Mundari Grammar with exercise by Rev, J. Hoffmann, S.J., Catholic

Misson, Ranchi.

Oraon

...

...

Kath Ara Kath Billin Idu. by Dr. Christ Michael Tigga,

K. B. Kadru, Ranchi.

Ho

...

...

Ho Kajiby Sri Bhim Ram Solanki, Chaibassa.

9. Rewards will be given as mentioned below to candidates who pass the examination mentioned in paragraph I of the Appendix, within the stipulated time, subject to the condition that from all rewards granted, any rewards previously drawn for the same language will be deducted: -

Lower Standard Rs.

Higher Standard Rs.

Officers of Class I...

750

1,000

Officers of Class II...

500

800

Officers of Class III...

250

400

Note. I - An officer, who appears only at the oral test, as provided in paragraph 4 above, shall not be entitled to any reward.

Note. II - No reward shall be given to any officer for proficiency in a second language of the same group. The groups

are-

Group I-Ho, Mundari, Santhali.

Group II-Oraon, Rajmahal, Paharia.

Group III-Nepalese Paharia or Khas Kura.

10. The Commissioners conducting the examination will report to Government the names of officers declared to have passed by each standard.

Part II ? Rules for the Optional Study of Tribal Languages

11. Officers posted outside the areas mentioned in Part I of this Appendix will be eligible to appear at the optional examination in the languages noted below: -

Group I-Ho, Mundari Santhali

Group II-Oraon, Rajmahal, Paharia.

Group III-Nepalese Paharia or Khas Kura.

12. The tests which a candidate must undergo shall be as in Part I of this Appendix. In addition, the examinee must transliterate and translate into English or Hindi a paper in the current written (not printed) form of character of the language.

13. The standards of the optional examination and the percentage of marks required for passing by each standard shall be the same as for the compulsory examination in other tribal languages laid down in paragraph 3 of this Appendix.

14. The examination shall be conducted under the control of the Commissioners, Chotanagpur and Bhagalpur Divisions, who will convene local committees for the purpose.

Commissioner of Bhagalpur-

Group I-Santhali.

Group II-Rajmahal, Paharia.

Group III-Nepalese, Paharia.

Commissioners of Chotanagpur-

Group I-Ho and Mundari.

Group II-Oraon.

15. The rewards to be given to successful candidates will be as detailed below subject to the condition that from all rewards granted, any rewards previously drawn for the same language are deducted-

Lower StandardRs.

Higher StandardRs.

For all language except Nepalese, Paharia Officers of Class I

750

1,000

For Nepalese, Paharia Officers of Class I

250

500

16. The Commissioners, Chotanagpur and Bhagalpur Division will report to Government the names of officers declared to have passed by each standard.

Appendix III

(See Rule 14)

(Form of Application)

No.....

From

.....

.....

To

.....

.....

Date.....20.....

Sir,

With reference to Rule 14 of the Rules for the Departmental Examination of Officers of the Indian Forest Service, I have

to report my intention to appear at the Departmental Examination to be held at (a)from the
(b).....19.....in the following subjects:-

Subject	Lower standard	Higher standard
---------	----------------	-----------------

(1)

(2)

(3)

(4)

(5)

Yours faithfully, Full Signature with name and designation.....

Office.....

district.....

To be clearly Written

(Note - Candidates should state for what standard they intend to appear)

(a)

Name of Centre.

(b)

Date.

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Translation